

South Korea

Rights Dimension (R1–R10)

Measures how strongly the framework protects individuals from AI harms. Max raw score: 20.

Code	Indicator & Justification	Score
R1	Binding comprehensive AI law with individual rights provisions The AI Basic Act is a comprehensive binding regulation effective January 22, 2026, with a one-year grace period deferring most financial penalties through January 2027 except for cases involving serious social harm. Maximum penalty: KRW 30 million (~USD 22,000). The law applies to AI development operators and AI utilization operators, with extraterritorial reach to foreign entities indirectly impacting the Korean market.	Score 2 — Binding / comprehensive
R2	Explicit list of prohibited AI use categories in binding law No explicit list of prohibited AI use categories equivalent to EU Article 5. The Act creates categories of high-impact AI (healthcare, education, employment, finance, transportation, public safety) with mandatory obligations, but does not enumerate prohibited uses. Score 1 — category-based obligations without a prohibition list.	Score 1 — Soft / partial / sector-specific
R3	Legal right to explanation for automated AI decisions The Act requires AI operators to endeavour to explain AI decision-making to affected users, but this is a duty-to-endeavour rather than a binding individual legal right equivalent to EU Article 86. Transparency notifications are mandatory for generative AI use. Score 1.	Score 1 — Soft / partial / sector-specific
R4	Legal right to human review of AI decisions High-impact AI operators must take necessary measures for human oversight. The standard is less prescriptive than EU Article 14. The Enforcement Decree specifies some oversight measures for specific categories. Score 1.	Score 1 — Soft / partial / sector-specific

R5	Legal right to contest or appeal AI-driven decisions	Score 1 — Soft / partial / sector-specific
	General administrative law provides some contestation mechanisms. No AI-specific binding right to appeal automated decisions exists in the Act. Score 1.	
R6	Anti-discrimination provisions specifically targeting AI	Score 1 — Soft / partial / sector-specific
	The Fair Hiring Procedure Act was amended to require notice of AI use in hiring. No AI-specific anti-discrimination law exists. General Equal Employment Law applies. Score 1 — general law applied rather than AI-specific provision.	
R7	Independent enforcement body acting on behalf of individuals	Score 2 — Binding / comprehensive
	KAISI (Korea AI Safety Institute) established with investigative powers and safety evaluation functions. The Personal Information Protection Commission gained new powers under concurrent amendments to investigate AI-related data breaches. Score 2.	
R8	Meaningful financial penalties calibrated to harm or global turnover	Score 1 — Soft / partial / sector-specific
	Maximum penalties of KRW 30 million (~USD 22,000). This is a fixed penalty, not calibrated to global turnover as in the EU AI Act. It renders enforcement functionally limited against large technology platforms. Score 1 — real but limited penalties.	
R9	Restrictions on biometric surveillance or invasive AI in binding law	Score 1 — Soft / partial / sector-specific
	The Act does not specifically address biometric surveillance. The Personal Information Protection Act applies to facial recognition data as sensitive personal information. No binding prohibition equivalent to EU Article 5(1)(d). Score 1.	
R10	Constitutional or treaty-level AI rights protection	Score 0 — Absent
	No constitutional or treaty-level AI rights protection. Score 0.	

Market Dimension (M1–M10)

Measures how strongly governance relies on voluntary, industry-led mechanisms. Max raw score: 20.

Code	Indicator & Justification	Score
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M1	Primary governance mechanism is voluntary, not legally binding Primary mechanism is binding legislation with mandatory transparency, documentation, and risk assessment obligations. Score 0.	Score 0 — Absent
M2	Industry self-governance is the primary compliance mechanism Article 28 authorizes voluntary Private Autonomous AI Ethics Committees, but compliance is primarily driven by MSIT, PIPC, and KAISI oversight. Score 0.	Score 0 — Absent
M3	Innovation promotion explicitly mandated in governance framework Chapter 2 of the Act explicitly mandates state support for AI industrial development including data centres, talent programmes, industry clustering, and startup support. Article 4 lists AI industry promotion as a core state obligation. Score 2.	Score 2 — Binding / comprehensive
M4	No binding financial penalties exist for AI violations Maximum penalty of KRW 30 million exists but penalties are deferred during the 2026 grace period. Penalties are real but modest relative to company size. Score 1 — limited penalties.	Score 1 — Soft / partial / sector-specific
M5	Formal regulatory sandbox or experimental zone for AI Some regulatory sandbox provisions exist in the broader Korean innovation framework. Not as formally structured as the EU's mandatory national sandboxes. Score 1.	Score 1 — Soft / partial / sector-specific
M6	Framework is principles-based rather than prescriptive-rules-based The Act uses specific risk categories with prescriptive transparency and documentation requirements. Score 0.	Score 0 — Absent
M7	No dedicated enforcement body with AI sanctioning powers KAISI is a dedicated AI safety institution. MSIT coordinates AI governance. Score 0.	Score 0 — Absent
M8	Compliance is primarily self-assessed, not externally audited High-impact AI operators must conduct risk assessments and maintain documentation per the Enforcement Decree. Score 0.	Score 0 — Absent

M9	Explicit alignment with international voluntary standards (OECD, ISO 42001) The Act references international cooperation extensively. KAISI has established cooperation with the U.S. State Department, NIST, and the EU AI Office. Score 2.	Score 2 — Binding / comprehensive
M10	Light-touch, pro-industry approach explicitly stated in official policy The Act is designed as binding regulation. Score 0.	Score 0 — Absent

Sovereign Dimension (S1–S10)

Measures how strongly the state directs and controls AI development and deployment. Max raw score: 20.

Code	Indicator & Justification	Score
S1	AI outputs must comply with state values or ideology in binding law No requirement for AI outputs to comply with state values. Score 0.	Score 0 — Absent
S2	Mandatory state registration required before AI deployment No mandatory state registration before deployment. Score 0.	Score 0 — Absent
S3	National security provisions give state broad AI override powers AI systems for national security are exempted from the Act's scope (Article 3). Score 1.	Score 1 — Soft / partial / sector-specific
S4	State directs AI development priorities through binding strategic mandate The National AI Committee, chaired by the President (Article 16), has statutory authority to set binding AI development policy. A mandatory three-year AI plan is required. The National Growth Fund (KRW 100 trillion) is underpinned by statutory direction. Score 2.	Score 2 — Binding / comprehensive
S5	Data localization requirements affecting AI training or deployment No data localization requirements in the AI Basic Act. Score 0.	Score 0 — Absent
S6	Restrictions on foreign AI providers or models in binding law No restrictions on foreign AI providers. Score 0.	Score 0 — Absent

S7	State ownership or investment explicitly directs AI development The Sovereign AI Initiative (50,000 NVIDIA GPUs, 50 data centres, National Growth Fund) represents substantial state direction of AI investment. Score 1.	Score 1 — Soft / partial / sector-specific
S8	State surveillance AI explicitly authorized or mandated in law No explicit authorization of state surveillance AI. Score 0.	Score 0 — Absent
S9	Content moderation requirements serving state political interests No content moderation requirements serving state political interests. Score 0.	Score 0 — Absent
S10	State pre-approval required for AI deployment No state pre-approval required. Score 0.	Score 0 — Absent

Derived Coordinates

Ternary coordinates (r, m, s) are computed directly from the raw indicator sums. The compass rx coordinate is derived as $(r - s) \times 1.15$, capped at $[-1, +1]$. Bind score reflects enforcement strength independently of the ternary position.

Rights (R)	11	20	r = 0.52
Market (M)	6	20	m = 0.29
Sovereign (S)	4	20	s = 0.19
Total	21	60	Enforcement (bind): 75%

$$r = 11 \div 21 = 0.52 \quad m = 6 \div 21 = 0.29 \quad s = 1.00 - 0.52 - 0.29 = 0.19$$